

105	Rosales vs. Harbor Distributing, L.L.C. 2023-01300842	Final Accounting Plaintiffs Miguel Rosales, Elio Ruben Alonso, Johnny Marquez, and Leo Patino’s Final Accounting hearing is CONTINUED to September 24, 2026 at 2:00 p.m. in Department CX102. On 7/24/2025, the Court entered a minute order conditionally granting Plaintiffs’ motion for final approval of the class and PAGA settlement. (ROA #144.) That order specified that Class Counsel must file the administrator’s final report at least 16 calendar days before the Final Accounting hearing, and that if the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. (<i>Id.</i> at p. 3.) On 7/28/2026, the Court corrected the 7/24/2025 minute order nunc pro tunc to state that the Final Accounting hearing is set for 7/23/2026 at 2:00 p.m. in Department CX102, and all other portions of the minute order issued 7/24/2025 remain in full force and effect. (ROA #148.) On 8/12/2025, the Court entered the final order and judgment approving the class action and PAGA settlement, which also specified that Class Counsel must file the administrator’s final report at least 16 calendar days before the Final Accounting hearing. (ROA #166 at ¶ 19.) As of 7/20/2026, no papers have been filed. No continuance has been requested, either. The Court therefore SETS an Order to Show Cause re Monetary Sanctions against Class Counsel to September 24, 2026 at 2:00 p.m. in Department CX102.for counsel’s failure to comply with the Court’s 7/24/2025 order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing. The Court also ORDERS Class Counsel to submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the continued hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller’s Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of another Order to Show Cause re Monetary Sanctions. Clerk to provide notice.
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